

FORMAL ADA CIVIL RIGHTS GRIEVANCE

City of Bloomington, Indiana

E University Street at Alley Crossing (Between S Grant Street and S Henderson Street) — Inaccessible Pedestrian Alley Crossing in the Public Right-of-Way, Documented Continuously from 2007 through 2026

Submitted to:	Michael Shermis, ADA Coordinator / Human Rights Commission Director
City:	City of Bloomington, Indiana
Date:	May 14, 2026
Re:	ADA Non-Compliance — Pedestrian Alley Crossing, North Side of E University Street between S Grant Street and S Henderson Street: Inaccessible Crossing Surface Documented Continuously Since 2007; Failure of City Sidewalk Grinding Work to Achieve Compliance at the Cut

Executive Summary

The sidewalk on the north side of E. University Street, between S. Grant Street and S. Henderson Street in Bloomington, Indiana, is interrupted by an alley cut consisting of mounded gravel. It is impassable for wheelchair users and does not comply with PROWAG’s requirement that pedestrian surfaces be firm, stable, and slip-resistant. The south-side sidewalk presents its own alley cut and does not offer an accessible alternative. These conditions have persisted for at least nineteen years.

Recent sidewalk grinding over the full length of this block — including on the lip of the alley cut — constitutes an alteration to a pedestrian facility and triggers the obligation to bring the crossing into PROWAG compliance. The grinding addressed multiple irregularities while leaving the alley crossing entirely untouched. For wheelchair users, an impassable loose-aggregate crossing in the middle of the block renders the pedestrian route unusable at that point; the block was inaccessible before the grinding and remains inaccessible after. The maintenance characterization is unavailable in any event: there has never been an accessible surface at this crossing to maintain.

The City’s sidewalk condition map rates this segment “Good.” The surface requirement — firm, stable, and slip-resistant — applies to any walking surface within a pedestrian access route, regardless of whether a formal curb ramp is present.

1. Introduction and Overview

This document constitutes a formal civil rights grievance filed pursuant to Title II of the Americans with Disabilities Act of 1990 (42 U.S.C. § 12131 et seq.). The complaint concerns the pedestrian alley crossing on the north side of E University Street, at the public alley located within the block between S Grant Street and S Henderson Street in Bloomington, Indiana, adjacent to the property at approximately 409 E University Street.

The north-side sidewalk of E University Street is interrupted at this location by a public alley. The alley sits in the public right-of-way; as documented in Section 3.1, the parcel records at Fig. A-12 show that the alley space is not incorporated into either of the abutting private parcels. The pedestrian crossing through this public alley consists of an unpaved, loose aggregate surface that is neither firm, stable, nor slip-resistant. A person using a wheelchair or other mobility device cannot traverse this crossing without encountering a surface that fails applicable accessibility standards.

The photographic record establishes that this condition is not new. Google Street View imagery documents inaccessible loose-aggregate conditions at this alley crossing on both sides of E University Street as of August 2007 (Figs. A-1 and A-2). Additional Street View captures from October 2013 (Fig. A-3), August 2014 (Fig. A-4), May 2019 (Fig. A-5), and July 2023 (Figs. A-6 and A-7) document the same conditions at intermediate dates. The complainant's photographs taken April 6 and April 7, 2026 document current conditions (Figs. 1, 2, and 3 below; Figs. A-8 through A-10 and A-13 in Appendix A). The inaccessible loose-aggregate condition at this alley crossing is documented at every available date in the photographic record, spanning approximately nineteen years. The north side — the primary subject of this complaint — is documented in 2007 (Figs. A-1 and A-14), 2013 (Fig. A-3), 2014 (Fig. A-4), 2019 (Fig. A-5), 2023 (Fig. A-6), and the complainant's 2026 photographs; the south side, which the City may invoke as an alternative route, is documented in 2007 (Fig. A-2), 2023 (Fig. A-7), and the complainant's 2026 photograph (Fig. A-13).

In 2025, the City of Bloomington performed sidewalk grinding work at this alley cut, addressing the vertical lip of the transition between the north-side sidewalk and the alley surface. The City's performance of that work at this location is itself relevant: it confirms that the City treats this transition as a City pedestrian facility subject to its Title II obligations. The grinding addressed a secondary element of the crossing while leaving the primary barrier — the absence of a firm, stable, slip-resistant walking surface through the alley — entirely uncorrected.

The legal framework that governs this complaint does not depend on any single regulatory event. Three independent obligations apply, and any one of them is sufficient to support the relief requested:

- First, the program accessibility obligation of 28 C.F.R. § 35.150 has required since January 26, 1992 that the City operate its pedestrian program so that it is accessible to persons with disabilities when viewed in its entirety. This obligation does not require an

alteration event to attach. The documented inaccessibility of this crossing has persisted through approximately nineteen of the thirty-four years that obligation has been in force.

- Second, the maintenance obligation of 28 C.F.R. § 35.133 requires the City to maintain accessible features in operable working condition. The City's 2025 grinding at the alley cut — work the City may characterize as routine maintenance — addressed only a secondary element of the crossing while leaving the primary barrier in place.
- Third, and as an alternative basis, to the extent the City's 2025 grinding work is properly characterized as an alteration of a pedestrian facility under 28 C.F.R. § 35.151, the alteration triggered an obligation to bring the affected pedestrian access route elements into compliance with applicable accessibility standards to the maximum extent feasible. That obligation has not been satisfied.

The complaint does not stand or fall on the alteration-versus-maintenance question. The surface requirements of the 2010 ADA Standards (§§ 302 and 406) and PROWAG R302.7 — the latter adopted by the City through Resolution 2011-99 in September 2011 — apply to walking surfaces within pedestrian access routes regardless of whether any recent work has been performed at the location. A loose aggregate surface fails those requirements as a matter of plain fact, and the City's program accessibility and maintenance obligations require correction.

This complaint does not allege that curb ramps were required at this location. It alleges that the surface of the pedestrian circulation path at this crossing — whatever its form — is not firm, stable, or slip-resistant. Potential defenses, including any reliance on local ordinance allocating sidewalk maintenance to abutting property owners (which has no application to a crossing in the public alley right-of-way), are addressed in Section 5.

The City's online pedestrian facility condition map, maintained through its B Clear Open Data system, represents this sidewalk segment as rated “Good” (Fig. A-11). That representation does not correspond to conditions on the ground.

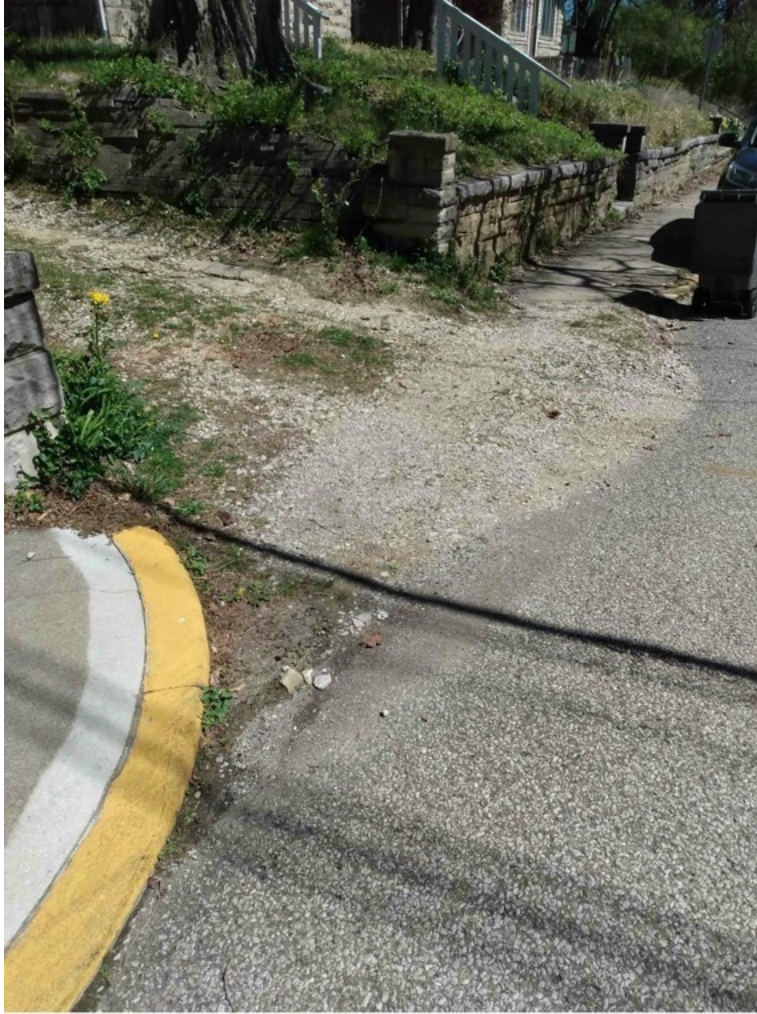


Fig. 1: Complainant's photograph, April 6, 2026. Ramp at the west edge of the alley crossing, north side of E University Street between S Grant Street and S Henderson Street. Loose gravel visible on and around the ramp surface; evidence of recent City sidewalk grinding visible at the ramp's leading edge; stone retaining wall at right; City-marked trash bin at upper left.



Fig. 2: Complainant's photograph, April 6, 2026. View looking north from the street edge into the alley at this crossing. The alley surface is loose aggregate throughout; no firm, stable, or slip-resistant surface exists for pedestrian traversal. Stone retaining walls flank the alley on both sides.



Fig. 3: Complainant's photograph, April 7, 2026. South side of E University Street at the alley crossing between S Grant Street and S Henderson Street. The sidewalk terminates at a vertical drop of several inches to a loose aggregate alley surface; broken concrete fragment visible at the edge. No ramp, blended transition, or other compliant means of pedestrian traversal exists at this location. This view documents that the south side of E University Street does not provide an accessible alternative route at this alley crossing.

2. Applicable Regulatory Framework

2.1 Program Accessibility — Primary Basis (28 C.F.R. § 35.150)

Under 28 C.F.R. § 35.150(a), a public entity shall operate each service, program, or activity so that the service, program, or activity, when viewed in its entirety, is readily accessible to and usable by individuals with disabilities. This obligation has been in effect since January 26, 1992, and does not require an alteration event to attach. Under § 35.150(d), public entities of the City's size were required to complete the structural changes necessary to achieve program accessibility no later than January 26, 1995. The obligation requires that the City's pedestrian network, considered as a program, not exclude persons with disabilities through barriers that foreclose

participation, and the deadline by which structural barriers were to be addressed has been in force for more than thirty-one years as of the date of this complaint.

The complainant does not contend that one barrier, standing alone, equates to a program-level violation. The complainant does contend that an inaccessible alley crossing in the middle of an otherwise continuous concrete sidewalk — a crossing that severs the north-side pedestrian route on this block, with no accessible alternative on the south side as documented in Fig. 3 and Section 3.4 — is properly considered as evidence relevant to whether the City's pedestrian program is accessible “when viewed in its entirety.” The nineteen-year documented continuity of the condition, across multiple independent photographic sources, places this barrier well beyond any characterization of transient or inadvertent non-compliance.

2.2 Maintenance of Accessible Features — Independent Basis (28 C.F.R. § 35.133)

Under 28 C.F.R. § 35.133(a), a public entity shall maintain in operable working condition those features of facilities and equipment that are required to be accessible. The regulation recognizes that isolated or temporary interruptions due to maintenance or repair may be unavoidable; that exception has no application here. The loose aggregate condition at this crossing is documented in Google Street View imagery from August 2007, October 2013, August 2014, May 2019, and July 2023, and in the complainant's photographs from April 2026, spanning approximately nineteen years across multiple seasons and weather conditions. This is not a temporary interruption; it is a persistent feature of the crossing that has remained materially unchanged across nearly two decades of City administration.

The City's 2025 sidewalk grinding at the alley cut compounds rather than satisfies this obligation. The City elected to spend resources improving a secondary element of this pedestrian facility — the vertical lip at the transition between the sidewalk and the alley — while leaving the primary barrier, the loose aggregate surface that the pedestrian must actually traverse, entirely unaddressed. A maintenance program that improves a curb-ramp lip at a location where the connecting walking surface is impassable to wheelchair users does not maintain that location's accessibility within the meaning of § 35.133.

2.3 Alterations Standard — Alternative Basis (28 C.F.R. § 35.151)

Under 28 C.F.R. § 35.151(b), when a public entity alters an existing facility, the altered portion shall comply with applicable accessibility requirements to the maximum extent feasible. In 2025, the City performed sidewalk grinding work at this alley cut, addressing the vertical lip of the cut on the west side of the crossing and in the vicinity of the lip on the east side. To the extent that grinding is properly characterized as an alteration to a pedestrian facility, the obligation to deliver an accessible pedestrian access route at the affected location attached at that moment, and a loose-aggregate crossing surface does not discharge that obligation.

Whether sidewalk panel grinding of this kind constitutes an alteration triggering § 35.151, or instead falls within a maintenance category, is a question on which reasonable views may differ. The complainant addresses the City's likely characterization of this work as maintenance in Section 5.2 below. The complaint offers § 35.151 as an alternative basis precisely because of this uncertainty; the primary bases under §§ 35.150 and 35.133 do not depend on its resolution.

While Indiana DOT's Field Inspection and Engineering (GIFE) Section 22 applies directly to state-funded transportation projects rather than to municipal work of this kind, its guidance on ADA compliance principles is instructive: INDOT, applying the federal “technical infeasibility” framework, requires any departure from full compliance to be documented in writing, by appropriate engineering authority, before construction begins. No such pre-construction determination has been disclosed for the work performed at this location.

2.4 Applicable Technical Standards

2010 ADA Standards for Accessible Design, §§ 302 and 406 (Floor or Ground Surfaces; Curb Ramps): Curb ramps (§ 406) are required to comply with the ground-surface provisions of § 302, which require walking surfaces to be stable, firm, and slip resistant. These standards apply through DOJ's Title II implementing regulations as the operative federal accessibility standard.

PROWAG R302.7 (Surfaces, City adoption 2011): Surfaces of pedestrian access routes shall be firm, stable, and slip resistant. The City committed to PROWAG as the technical standard for pedestrian facilities in the public right-of-way through Resolution 2011-99 (September 27, 2011).

PROWAG R204.2 (Pedestrian Access Routes, City adoption 2011): A pedestrian access route shall be provided within sidewalks and other pedestrian circulation paths in the public right-of-way.

3. Description of the Barrier and Documented Conditions

3.1 The Alley Crossing, Its Public Right-of-Way Status, and the Basis for City Responsibility

The north side of E University Street, between S Grant Street and S Henderson Street, carries a continuous concrete sidewalk that is interrupted by a public alley running north–south through the residential block. Where the sidewalk meets the alley, ramp transitions descend from the sidewalk to the alley surface on both the east and west sides of the alley. The alley surface within the crossing — the surface a pedestrian must traverse to continue along the north-side sidewalk — is unpaved, consisting of loose aggregate material.

The City's responsibility for accessibility at this crossing rests on two independent and mutually reinforcing grounds.

First, the alley is public right-of-way. As shown in Fig. A-12, the parcel boundaries for 53-08-04-220-001.000-009 (the parcel west of the alley) and 53-08-04-220-003.000-009 (the parcel east of the alley) do not include the alley space. Going east from S Grant Street on the north side of E University Street, the parcel map shows parcel 53-08-04-220-008.000-009 (the western house), then parcel 001, then an unenclosed gap, then parcel 003. The unenclosed gap between parcels 001 and 003 is the alley. Because the alley space is not incorporated into any abutting private parcel, it is a separate dedicated right-of-way held by the City. The pedestrian crossing through that right-of-way is a City pedestrian facility for purposes of Title II.

Second, the City's own performance of work at this transition is an exercise of City authority over the facility. The 2025 grinding work described in Section 3.2 was performed at the alley cut itself — at the transition between the sidewalk and the public alley right-of-way. The City's selection of this transition as a location for its grinding work is itself evidence that the City treats this crossing as a City pedestrian facility subject to its accessibility obligations.

The crossing is flanked on both sides by stone retaining walls that constrain the alley width at the street level. The north-side sidewalk at this location serves as a pedestrian route connecting the residential neighborhood north of E University Street to the Indiana University campus corridor to the east.

3.2 The City's Sidewalk Grinding Work at the Alley Cut

In 2025, the City of Bloomington performed sidewalk grinding work at this alley cut. Based on the complainant's direct observation, the grinding addressed the vertical lip of the cut on the west side of the crossing and in the vicinity of the lip on the east side. Evidence of grinding is visible at the leading edge of the ramp in Fig. 1 (west side) and at the corresponding transition on the east side in Fig. A-9.

The complainant requests in Remedy 1C that the City produce its work records establishing the precise date, scope, and responsible parties for the grinding work performed at this transition. Whether the work was performed by City crews or by contractors engaged by the City does not affect the analysis: a public entity remains responsible under Title II for work performed at its direction in the public right-of-way, regardless of who executes that work.

The relevant point for this complaint is not the precise date of the grinding but its scope. The grinding addressed the vertical lip at the transition between the sidewalk and the alley while leaving the alley crossing surface itself entirely unimproved. The result is a facility in which the vertical transition has been reduced while the primary barrier — the absence of a firm, stable, slip-resistant walking surface through the crossing — remains as it was.

3.3 The Nineteen-Year Documented Record of Inaccessibility

The photographic record at this alley crossing spans August 2007 through April 2026 — a period of approximately nineteen years — and documents that the inaccessible loose-aggregate condition has persisted continuously on both sides of E University Street across that entire period.

Figure A-1 is a Google Street View image from August 2007 documenting the north-side alley cut on E University Street; Figure A-14 is a complementary view from the same August 2007 imagery pass, looking from the north-side sidewalk into the alley itself, showing that the loose-aggregate surface extends through the alley and not merely at the cut. The alley surface is loose aggregate throughout; no compliant surface exists for pedestrian traversal. Figure A-2 is a Google Street View image from the same 2007 imagery pass documenting the corresponding south-side condition at the same alley. Figure A-3 is a Google Street View image from October 2013 showing the north-side alley cut with the same loose-aggregate condition approximately six years after Fig. A-1. Figure A-4 is a Google Street View image from August 2014 showing the north-side alley cut with the same loose-aggregate condition. Figure A-5 is a Google Street View image from May 2019 showing the north-side alley cut with the same condition nearly twelve years after the 2007 capture. Figures A-6 and A-7 are Google Street View images from July 2023 documenting the loose-aggregate condition on the north and south sides respectively. Figures A-8 through A-10 are the complainant's photographs from April 6, 2026 documenting current north-side conditions, and Fig. A-13 is the complainant's photograph from April 7, 2026 documenting current south-side conditions.

The photographic record spans five independent Google Street View imagery passes (2007, 2013, 2014, 2019, 2023) plus the complainant's direct observations in April 2026. The north-side crossing — the location at issue in this complaint — is documented in 2007 (Figs. A-1 and A-14), 2013 (Fig. A-3), 2014 (Fig. A-4), 2019 (Fig. A-5), 2023 (Fig. A-6), and 2026 (Figs. A-8 through A-10), with no compliant ramp or accessible surface at any documented date. The south side, raised in Section 3.4 to foreclose the alternative-route defense, is documented in 2007 (Fig. A-2), 2023 (Fig. A-7), and 2026 (Fig. A-13). This is not a condition that arose recently, nor one that reflects a transient maintenance gap. It is a documented feature of the crossing that has persisted through multiple City administrations and through nearly fifteen years of the City's own stated commitment to PROWAG under Resolution 2011-99.

3.4 The South Side of E University Street Is Not an Accessible Alternative

The City may point to the south side of E University Street as an alternative pedestrian route available to wheelchair users seeking to bypass the north-side alley crossing. The photographic record establishes that the south side does not provide an accessible alternative, and that this condition has persisted for the same nineteen-year period as the north-side condition.

Figures A-2 (August 2007) and A-7 (July 2023) are Google Street View images documenting the south-side alley crossing. Figure 3 (and Fig. A-13 in the appendix), the complainant's photograph

taken April 7, 2026, documents current conditions. At every documented date, the south-side sidewalk terminates at a loose-aggregate alley surface with no compliant ramp, blended transition, or other means of pedestrian traversal. The April 2026 photograph additionally documents a vertical drop appearing to exceed several inches from a cracked concrete sidewalk panel to the alley surface, with broken concrete at the edge — a drop far in excess of the ½-inch maximum change in level permitted under the 2010 ADA Standards § 303.4 and the corresponding PROWAG provision.

The complainant raises the south-side conditions only to foreclose the alternative-route defense, not as an independent basis for relief; the south-side crossing may be the subject of a separate complaint. For purposes of the present complaint, the relevant point is that a pedestrian network providing no accessible crossing of this alley on the north side, and no accessible alternative on the south side, across a documented nineteen-year period, is relevant evidence on the program accessibility analysis under § 35.150.

3.5 The City's Condition Data Does Not Reflect Actual Conditions

The City's online sidewalk condition map, maintained through the B Clear Open Data platform, rates this sidewalk segment as “Good” (Fig. A-11). That rating does not correspond to conditions on the ground. The City's data either does not capture alley crossing conditions within its rating methodology, or contains inaccurate data for this location. Either circumstance is relevant to the City's ADA self-evaluation and transition plan obligations: a self-evaluation that rates a segment containing an impassable alley crossing as “Good” does not provide an accurate accounting of pedestrian accessibility conditions.

4. Regulatory Violations

The conditions described in Section 3 establish violations of the following regulatory provisions:

Regulation	Violation
28 C.F.R. § 35.150(a)	Failure to operate the City's pedestrian program so that it is, when viewed in its entirety, readily accessible to and usable by individuals with disabilities. The alley crossing severs the north-side pedestrian route on this block of E University Street; the south side does not provide an accessible alternative. Both conditions are documented across a nineteen-year period (2007–2026).
28 C.F.R. § 35.133(a)	Failure to maintain accessible features in operable working condition. The inaccessible loose-aggregate crossing surface is documented across a nineteen-year period and is a persistent condition, not a temporary interruption. The City's 2025

	sidewalk grinding work at this location addressed a secondary element while leaving the primary barrier in place.
28 C.F.R. § 35.151(b)	Alternative basis: To the extent the City's 2025 grinding work at the alley cut is properly characterized as an alteration to a pedestrian facility, the altered facility was not brought into compliance with applicable accessibility standards to the maximum extent feasible. The crossing surface remains loose aggregate.
ADA Standards §§ 302 and 406 (2010 Standards for Accessible Design)	Walking surfaces of pedestrian access routes and curb ramps must be stable, firm, and slip resistant (§ 302, applied through § 406). The alley crossing surface does not satisfy these requirements.
PROWAG R302.7 (City adoption, Res. 2011-99)	Surfaces of pedestrian access routes shall be firm, stable, and slip resistant. Cited as the technical standard under the City's own adopted guidelines.
PROWAG R204.2 (City adoption, Res. 2011-99)	A pedestrian access route shall be provided within sidewalks and other pedestrian circulation paths in the public right-of-way. No pedestrian access route meeting applicable surface standards exists at this alley crossing.

5. The City's Anticipated Defenses and Why They Fail

5.1 The ADA Does Not Require Curb Ramps at Alley Crossings

The City may argue that the ADA does not require curb ramps at alley crossings. For purposes of this complaint, the complainant does not dispute that proposition. This complaint does not allege that a curb ramp was required at this location; it alleges that the walking surface of the pedestrian circulation path at this crossing is not firm, stable, or slip-resistant.

The § 302 surface requirement and PROWAG R302.7 apply to any walking surface that is part of a pedestrian access route. They do not depend on the presence or absence of a formal curb ramp. A pedestrian path that traverses a public alley must have a compliant surface regardless of whether ramps are present at the transition. Such a defense would conflate two distinct requirements — the curb ramp design requirement and the surface requirement — and does not address the surface violation alleged here. The City's own decision to grind the vertical lip at this location is itself evidence that the City treats this crossing as a pedestrian facility subject to accessibility improvement; having chosen to improve a secondary element of the crossing, the City cannot simultaneously maintain that the primary element falls outside its accessibility obligations.

5.2 “Sidewalk Grinding Is Maintenance Under DOJ/DOT Guidance, Not an Alteration”

The City may characterize its 2025 grinding work as maintenance rather than alteration, possibly invoking the 2013 DOJ/DOT Joint Technical Assistance on resurfacing and curb ramps, which lists various pavement treatments as maintenance for purposes of triggering curb ramp obligations on resurfacing projects. The complainant anticipates this defense and addresses it on four independent grounds.

First, the maintenance/alteration distinction does not resolve this complaint. The 2013 Joint Technical Assistance was developed to clarify when various roadway pavement treatments applied to streets constitute alterations triggering curb ramp obligations on resurfacing projects. Whether sidewalk panel grinding at a pedestrian facility falls within the same category as roadway diamond grinding is at best unsettled, and is in any event factually distinct: the work here was performed on a pedestrian facility for the purpose of modifying its physical characteristics, not as part of a vehicular pavement preservation program. The complainant offers § 35.151 as an alternative basis precisely because reasonable views may differ. But the primary bases under §§ 35.150 and 35.133 do not depend on that question at all.

Second, the maintenance characterization is not available to the City on the facts of this location. Section 35.133 requires a public entity to maintain accessible features “in operable working condition.” That language presupposes a feature that was once in operable, accessible condition — something to be maintained. The photographic record spanning August 2007 through April 2026 establishes that this alley crossing has never had a firm, stable, slip-resistant surface within the documented period. There is no accessible condition to maintain; the crossing was inaccessible before the grinding and inaccessible after it. The City cannot invoke a maintenance framing to describe work performed at a location that has never been brought into compliance. What the City delivered at this transition was not maintenance of accessibility; it was the continuation of a nineteen-year failure to provide it.

Third, whichever framework the City advances, it must identify the physical scope of the work — what, precisely, was altered or maintained. The City's grinding work was performed along the length of the sidewalk on this block of E University Street, not as a pinpoint operation confined to the few inches of curb at the alley cut. If the work is properly characterized as an alteration, the altered facility is the sidewalk along the block, and § 35.151 requires the pedestrian access route within that altered facility to comply with applicable accessibility standards to the maximum extent feasible. The pedestrian access route on the north side of E University Street is interrupted by, and therefore includes, the alley crossing; the obligation to deliver a compliant walking surface attached when the City elected to alter the surrounding sidewalk. If the work is instead characterized as maintenance, the second ground above disposes of it: a feature that has never existed in accessible condition cannot be “maintained” within the meaning of § 35.133. The City cannot avoid both frameworks by retroactively narrowing the scope of its own grinding

work to a single element of the cut while disclaiming responsibility for the impassable surface immediately adjacent to it.

Fourth, the City's own code framework recognizes a distinction between sidewalk repair and maintenance, on the one hand, and new construction and alterations, on the other. Bloomington Municipal Code § 12.04.010 addresses the repair and maintenance of existing sidewalks and assigns that responsibility to abutting property owners. The City's Unified Development Ordinance separately governs new construction and alterations requiring a permit. That the City's code draws this line is significant: it reflects a settled recognition that physical work on pedestrian facilities may be repair — or may be alteration — and that the two categories carry different legal consequences. The City cannot plausibly treat its 2025 grinding as falling conclusively within the maintenance category for purposes of its own Title II obligations while maintaining, elsewhere in its own code, that the maintenance-versus-alteration distinction is a meaningful regulatory line requiring case-by-case analysis. Whatever the correct characterization of the work at issue here, it is an inquiry the City is equipped to undertake; the distinction cannot be collapsed into maintenance simply because doing so is convenient to the City's defense of this complaint.

5.3 “Paving the Alley Is Outside the Sidewalk Program's Scope”

The City may argue that its sidewalk program addresses sidewalk panels and transitions, not alley surfaces, and that addressing the alley crossing would require a different program or budget. This framing would define the program's scope in a way that forecloses accessibility rather than promotes it. The pedestrian access route on the north side of E University Street passes through this alley crossing. The obligation under § 35.150 is not determined by which program budget funds a particular element; it is determined by whether the pedestrian program, viewed in its entirety, is accessible. Accessible pedestrian routes do not stop at internal program budget lines.

5.4 Technical Infeasibility

To the extent the City asserts that any element of full compliance at this crossing is technically infeasible — for example, citing the grade or the presence of flanking stone retaining walls — the complainant does not foreclose the possibility that specific engineering challenges may exist. If they do, the federal framework requires the City to document them in writing, identify the maximum extent to which compliance is feasible, and implement that maximum extent. While INDOT's GIFE Section 22 applies directly to state-funded transportation projects rather than to municipal work of this kind, its guidance on ADA compliance principles is instructive on the requirement that any technical infeasibility determination be made in writing by appropriate engineering authority before construction begins.

5.5 “The City's Data Shows This Segment Is Good”

As documented in Section 3.5 and Fig. A-11, the City's B Clear Open Data sidewalk condition map rates this segment as "Good." That rating is incorrect as applied to the pedestrian crossing conditions at this location. An inaccurate self-assessment does not establish compliance; it indicates a record-keeping gap that compounds the underlying accessibility failure and is itself relevant to the City's transition plan obligations.

5.6 Local Ordinance Allocating Sidewalk Maintenance to Abutting Property Owners

The City may invoke Bloomington Municipal Code § 12.04.010, which assigns responsibility for the repair of sidewalks to abutting property owners. That allocation, whatever its application to sidewalk panels fronting private parcels, has no application to the location at issue in this complaint.

As established in Section 3.1 and confirmed by the parcel records at Fig. A-12, the alley crossing is in the public right-of-way and does not abut any private parcel — there is no abutting property owner to whom maintenance responsibility for the alley surface or for the transition into it could have been delegated. The City's responsibility for accessibility at this transition arises directly from its Title II obligations and from its ownership and control of the right-of-way at this location, and is independently confirmed by the City's own performance of grinding work at the cut.

Even setting aside the public right-of-way question, sidewalk maintenance ordinances of this kind assign abutting owners responsibility for repair and maintenance of existing pedestrian infrastructure — correcting deteriorated panels, addressing heaving, clearing obstructions. That frame presupposes something that once existed in serviceable condition and has since degraded. No compliant surface has ever existed at this crossing. Bringing it into compliance would require new construction, and no City ordinance assigns that obligation to abutting property owners. The duty to provide accessible infrastructure where none exists rests with the City.

In any event, federal Title II obligations are not delegable to private parties through local ordinance. A municipality's program accessibility, maintenance, and alteration obligations under 28 C.F.R. Part 35 attach to the public entity and cannot be discharged by assigning the underlying physical work to abutting owners. To the extent any local ordinance is read to relieve the City of its Title II obligations as to any portion of the public pedestrian network, federal law preempts that reading.

6. Remedies Requested

Tier 1

Remedy 1A — Correction with Specific Timeline. The City shall correct the alley crossing at the north side of E University Street between S Grant Street and S Henderson Street such that the walking surface across the crossing complies with applicable accessibility standards, including the surface requirements of the 2010 ADA Standards (§§ 302 and 406) and PROWAG R302.7. Correction shall provide a firm, stable, and slip-resistant surface through the alley crossing, together with compliant transitions on both the east and west sides. If the City determines that any element of full compliance is technically infeasible, the City shall provide a written explanation identifying the specific physical constraint, the engineering authority who made the determination, and the maximum extent of compliance the City commits to achieve.

Within 60 days of receiving this complaint, the City shall provide:

- A specific construction start date and estimated completion date;
- Identification of the responsible program, crew, or contractor assigned to perform the work;
- A description of the physical modification that will bring the crossing into compliance;
- A point of contact through whom the complainant can verify completion.

Remedy 1B — Written Acknowledgment. The City shall provide a written response to this complaint addressing the regulatory provisions identified herein. If the City's position is that no violation has occurred, the City shall state its legal basis for that position in writing.

Remedy 1C — Records Production. The City shall produce the following records:

- Any ADA self-evaluation, transition plan, or maintenance or capital project record addressing accessibility at pedestrian alley crossings on E University Street between S Grant Street and S Henderson Street.
- Work orders, contractor invoices, or other records documenting the date, scope, and responsible parties for the 2025 sidewalk grinding performed at this alley cut, including which specific elements were addressed.
- Any written technical infeasibility determination made in connection with this crossing or with the broader sidewalk grinding work of which this work was a part.

The City shall also correct its B Clear Open Data sidewalk condition rating for this segment to reflect actual conditions at the alley crossing.

Tier 2 — Preferred Additional Remedy

The complainant requests that the City evaluate the accessibility of public alley crossings along the north-side sidewalk of E University Street between S Grant Street and S Henderson Street, and provide its assessment in writing. This is offered as a preferred additional remedy and does not condition the Tier 1 remedies.

7. Pattern of Non-Compliance and Systemic Concern

This complaint is one of a series of formal civil rights grievances being filed with this office regarding accessibility failures in the City's pedestrian network. Each complaint concerns a distinct location and set of documented facts. The condition documented here — sidewalk grinding work that addressed a secondary element of a pedestrian facility while leaving the primary barrier in place — raises a question about whether the methodology by which work locations are scoped and prioritized repeatedly produces incomplete accessibility outcomes. The records requested in Remedy 1C may help answer that question. The complainant reserves the right to supplement this complaint if the City's response defers or reduces other planned accessibility improvements.

8. Notice of Intent to Escalate

Should the City fail to provide a substantive response within 60 days of receiving this complaint, or should the response not include the specific commitments identified in Section 6, the complainant reserves the right to submit this complaint and the City's response to the Indiana Civil Rights Commission and to the U.S. Department of Justice, Civil Rights Division, Disability Rights Section.

9. Supporting Documents and References

- Title II of the Americans with Disabilities Act, 42 U.S.C. § 12131 et seq.; implementing regulation 28 C.F.R. Part 35.
- 2010 ADA Standards for Accessible Design, U.S. Department of Justice (September 15, 2010), incorporating the 2004 ADA Accessibility Guidelines; §§ 302 (Floor or Ground Surfaces), 303 (Changes in Level), and 406 (Curb Ramps).
- U.S. Access Board, Public Rights-of-Way Accessibility Guidelines (PROWAG), Final Rule, 36 CFR Part 1190, effective October 7, 2023 (88 FR 53604). Cited as technical reference under the City's own 2011 adoption.
- City of Bloomington, Board of Public Works, Resolution 2011-99, September 27, 2011 (City adoption of PROWAG as technical standard for pedestrian facilities).
- U.S. Department of Justice / U.S. Department of Transportation, Joint Technical Assistance on the Title II of the Americans with Disabilities Act Requirements to Provide Curb Ramps when Streets, Roads, or Highways are Altered through Resurfacing (July 2013), and the 2015 Questions & Answers Supplement.
- Indiana Department of Transportation (INDOT), Field Inspection Engineering (GIFE), Section 22: ADA Compliance for Sidewalk, Curb Ramps, Blended Transitions, and Pedestrian Facilities, Rev. 09-01-24.
- City of Bloomington, B Clear Open Data — Sidewalk Condition Map: <https://data.bloomington.in.gov/>.

- Monroe County parcel records (City of Bloomington tax records), parcel numbers 53-08-04-220-001.000-009, 53-08-04-220-003.000-009, and 53-08-04-220-008.000-009. See Fig. A-12.
- Google Street View historical imagery for E University Street near 407/410/412 E University St, imagery dates August 2007, October 2013, August 2014, May 2019, and July 2023.
- Photographic evidence: Figs. 1, 2, and 3 in body text; Figs. A-1 through A-14 in Appendix A. All photographs and images incorporated by reference.

Respectfully submitted,



May 14, 2026

This complaint was prepared with the assistance of Claude, an AI assistant developed by Anthropic (claude.ai), and other AI assistants. All factual observations, photographic evidence, and legal conclusions reflect the complainant's own direct knowledge and are the complainant's responsibility.

APPENDIX A

Photographic and Documentary Evidence — E University Street Alley Crossing, Between S Grant Street and S Henderson Street

Figures A-1, A-3, A-4, A-5, and A-6 are Google Street View images documenting the north-side alley crossing at dates from August 2007 through July 2023. Figures A-2 and A-7 are Google Street View images documenting the south-side alley crossing in August 2007 and July 2023 respectively. At every documented date on both sides, the alley crossing surface is loose aggregate and no compliant ramp or transition exists. Figures A-8 through A-10 are the complainant's photographs from April 6, 2026 documenting current north-side conditions, including evidence of recent City sidewalk grinding at the ramp lip. Figure A-11 is the City's B Clear Open Data sidewalk condition map showing this segment rated as "Good." Figure A-12 is the Monroe County parcel map establishing the alley as a separate public right-of-way. Figure A-13 is the complainant's photograph of the south-side alley crossing taken April 7, 2026. Figure A-14 is a second Google Street View image from the August 2007 imagery pass, looking from the north-side sidewalk into the alley itself, showing the loose-aggregate alley surface extending north into the block. Figure A-8 corresponds to Fig. 1 in the body text; Fig. A-9 corresponds to Fig. 2; Fig. A-13 corresponds to Fig. 3.

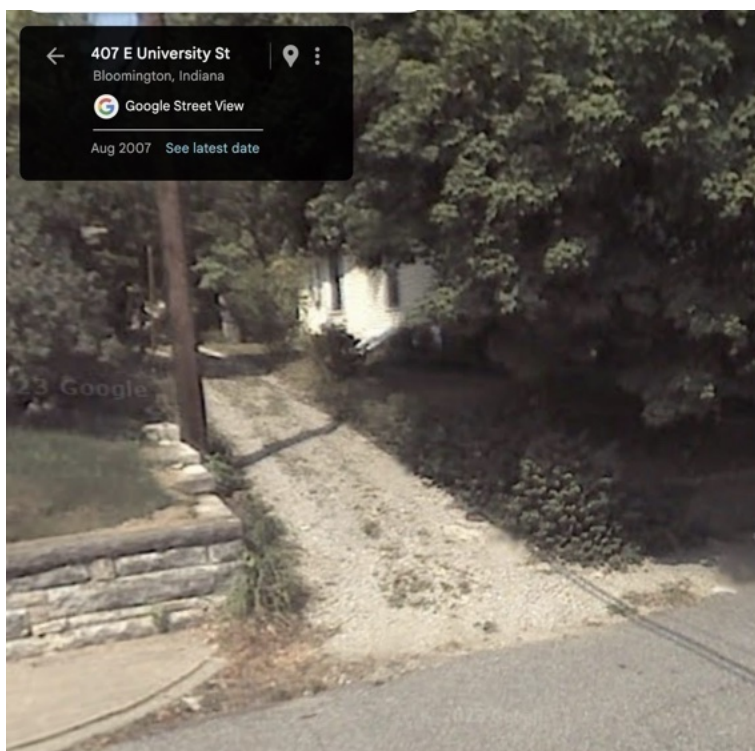


Fig. A-1 — Aug. 2007. Google Maps Street-level view, north side of E University Street near 407 E University St. View of the alley from the street; the alley surface is unpaved loose aggregate throughout, with stone retaining walls flanking the alley. No compliant pedestrian access route exists at the crossing. This image establishes that the inaccessible condition of the north-side alley crossing has existed for approximately nineteen years as of the date of this complaint.

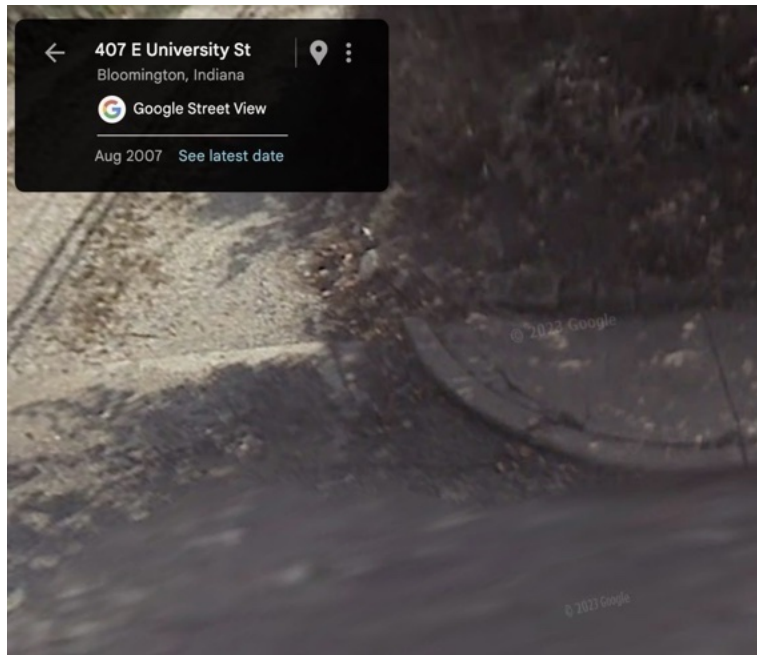


Fig. A-2 — Aug. 2007. Google Maps Street-level view, ground-level detail at the south-side alley cut on E University Street, from the same 2007 imagery pass as Fig. A-1. The image documents the loose-aggregate condition at the south-side alley crossing as of August 2007. This image establishes that the inaccessible condition of the south-side alley crossing has also existed for approximately nineteen years.

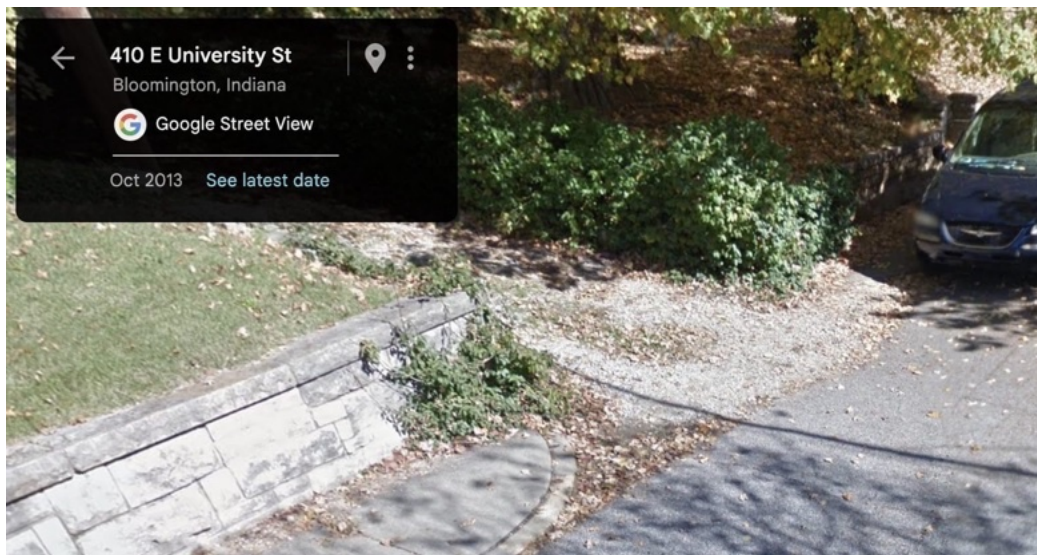


Fig. A-3 — Oct. 2013. Google Maps Street-level view, north side of E University Street near 410 E University St, at the alley crossing. The sidewalk terminates at a loose-aggregate alley surface; no compliant ramp or transition exists. This image documents the same inaccessible north-side condition approximately six years after Fig. A-1.

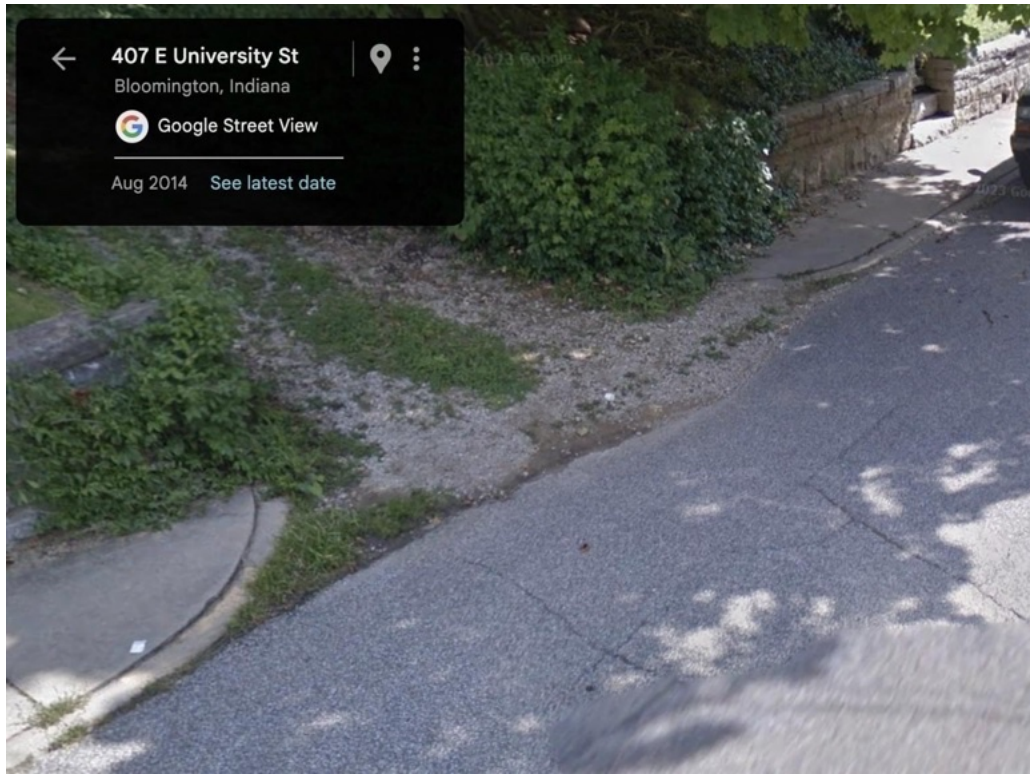


Fig. A-4 — Aug. 2014. Google Maps Street-level view, north side of E University Street near 407 E University St, at the alley crossing. The sidewalk terminates at a loose-aggregate alley surface with no compliant ramp or transition; yellow-painted curb edge visible at lower left. This image documents the same inaccessible north-side condition approximately seven years after Fig. A-1 and approximately ten months after Fig. A-3.



Fig. A-5 — May 2019. Google Maps Street-level view, north side of E University Street near 412 E University St, at the alley crossing. The sidewalk terminates at a loose-aggregate alley surface; no compliant ramp or transition exists. This image documents the same inaccessible north-side condition nearly twelve years after Fig. A-1.

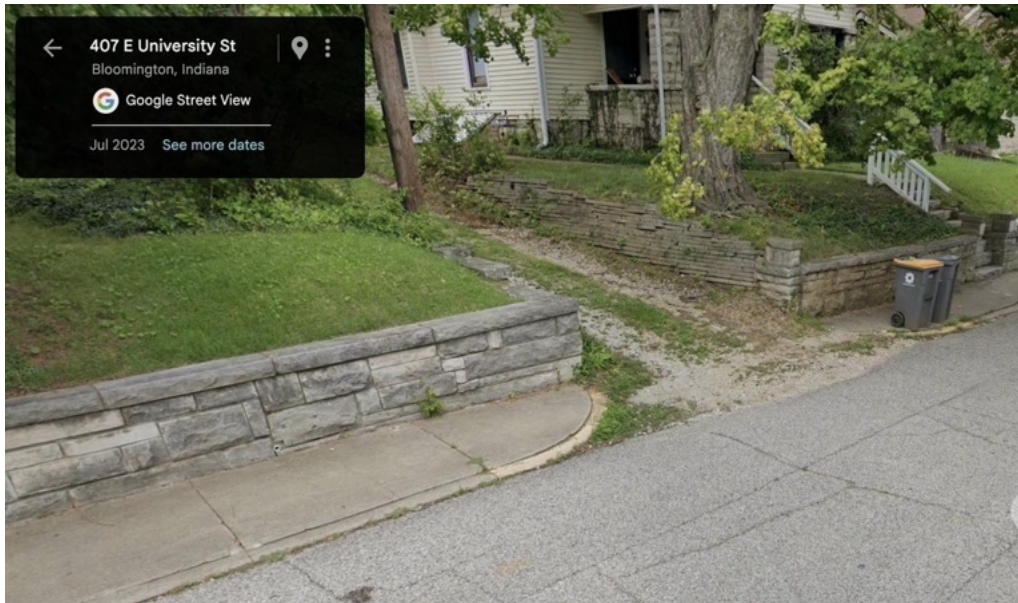


Fig. A-6 — Jul. 2023. Google Maps Street-level view, north side of E University Street at the alley crossing between S Grant Street and S Henderson Street. Curved sidewalk ramp at center descending to a loose-aggregate alley surface; stone retaining walls flanking the alley; City-marked trash bins at right. The alley extends north into the residential block. This image documents the same inaccessible north-side condition nearly sixteen years after Fig. A-1.

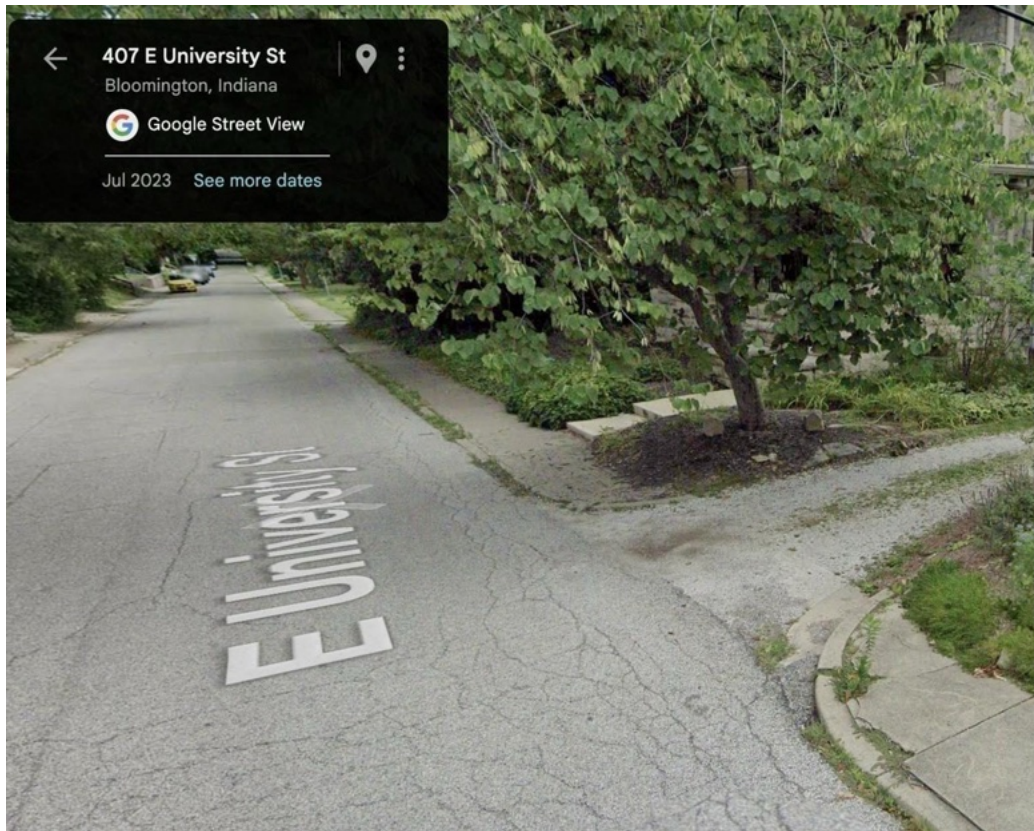


Fig. A-7 — Jul. 2023. Google Maps Street-level view, south side of E University Street at the same alley crossing. Sidewalk terminating at the alley with no compliant ramp or transition; loose-aggregate alley surface visible at right. This image documents the same inaccessible south-side condition approximately sixteen years after Fig. A-2 and nearly three years before the complainant's April 2026 photograph at Fig. A-13.

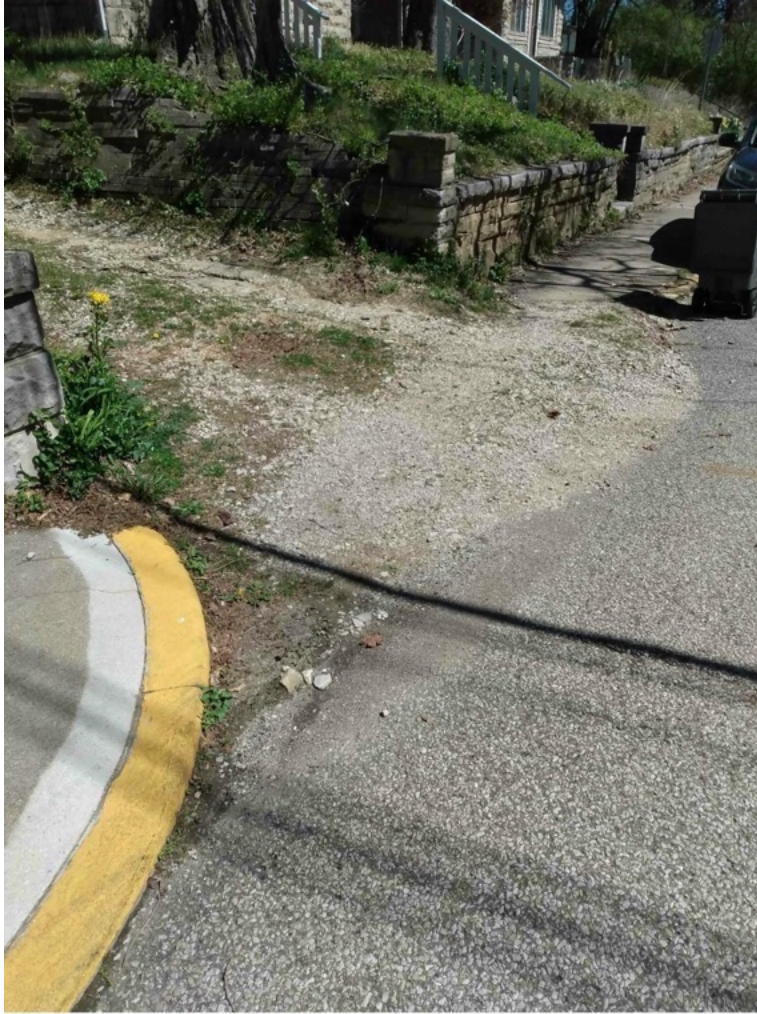


Fig. A-8 — Apr. 6, 2026. Complainant's photograph. Ramp at the west edge of the north-side alley crossing. Loose gravel on and around the ramp surface; evidence of recent City sidewalk grinding visible at the ramp's leading edge; stone retaining wall at right; City-marked trash bin at upper left. Corresponds to Fig. 1 in body text.



Fig. A-9 — Apr. 6, 2026. Complainant's photograph. View looking north from the street edge into the alley. Unpaved loose-aggregate surface throughout; no firm, stable, or slip-resistant crossing surface. Stone retaining walls on both sides. Corresponds to Fig. 2 in body text.



Fig. A-10 — Apr. 6, 2026. Complainant's photograph (HDR). Ground-level view at the alley cut, showing evidence of City sidewalk grinding in the vicinity of the lip on the east side of the alley. Loose gravel on the worked surface and on the surrounding alley surface; stone retaining wall at upper right.

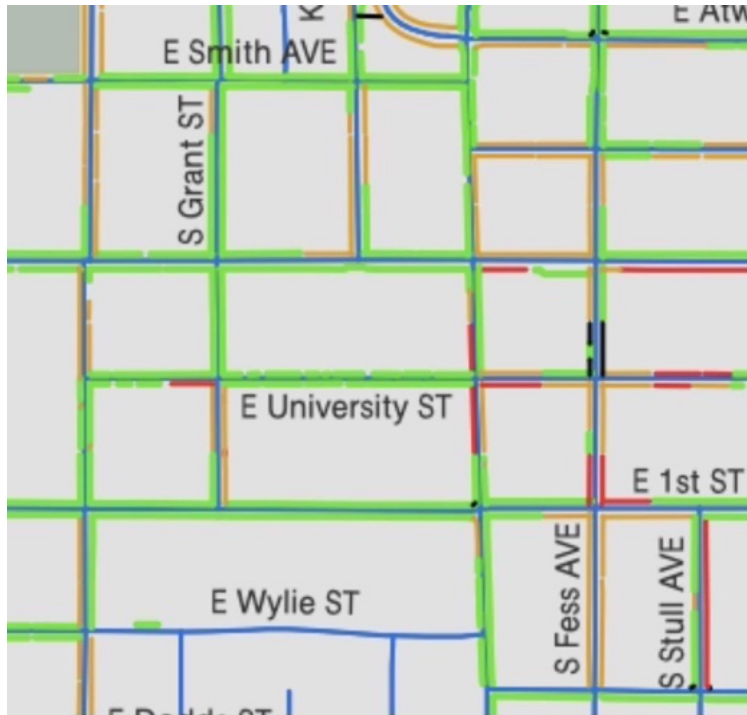


Fig. A-11 — Apr. 2026. City of Bloomington B Clear Open Data — Sidewalk Condition Map. The segment of E University Street between S Grant Street and S Henderson Street, including this alley crossing, is shown in green (“Good”). This rating does not correspond to conditions on the ground as documented in Figs. A-1 through A-10 and A-13.



Fig. A-12 — Apr. 2026. Monroe County parcel map, City of Bloomington tax records. E University Street runs horizontally across center; S Grant Street at left. Going east from S Grant Street on the north side of E University Street: parcel 53-08-04-220-008.000-009 (the western house), then parcel 53-08-04-220-001.000-009, then an unenclosed gap, then parcel 53-08-04-220-003.000-009. The unenclosed gap between parcels 001 and 003 is the

alley. Because the alley space is not incorporated into either abutting parcel, the alley is a separate public right-of-way held by the City.



Fig. A-13 — Apr. 7, 2026. Complainant's photograph. South side of E University Street at the alley crossing between S Grant Street and S Henderson Street. The sidewalk terminates at a vertical drop of several inches to a loose-aggregate alley surface; broken concrete fragment visible at the edge. No ramp, blended transition, or other compliant means of pedestrian traversal exists at this location. Corresponds to Fig. 3 in body text.

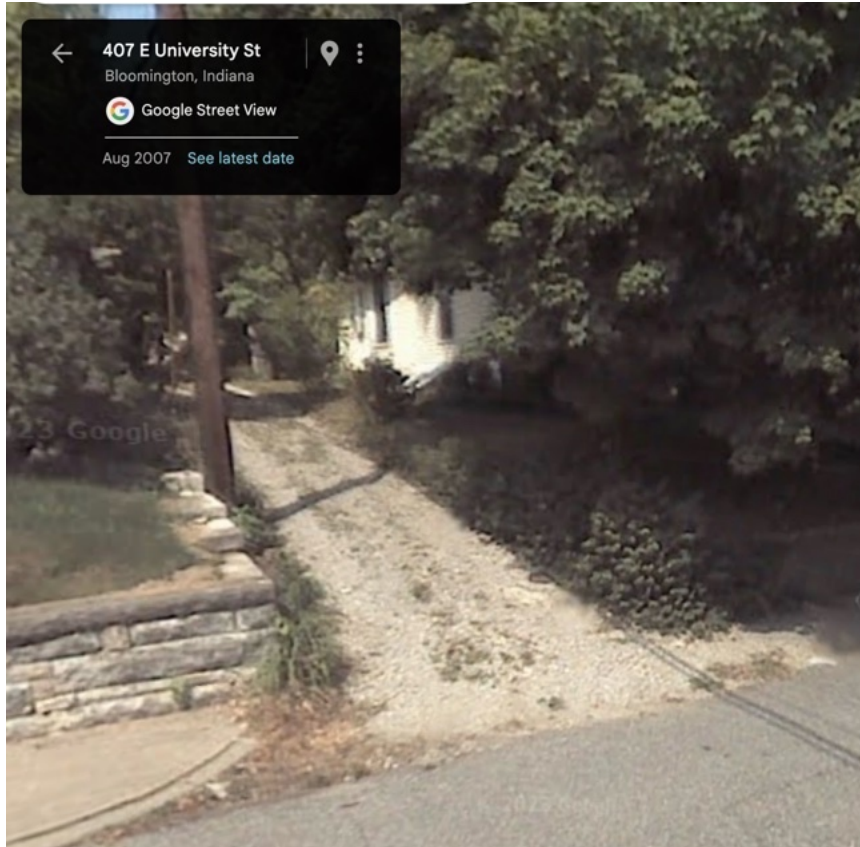


Fig. A-14 — Aug. 2007. Google Maps Street-level view, north side of E University Street near 407 E University St, looking from the sidewalk into the alley. The unpaved loose-aggregate alley surface extends north into the residential block; stone retaining wall visible at left, telephone pole at the corner. This image is from the same August 2007 imagery pass as Fig. A-1 and provides a complementary view documenting that the loose-aggregate condition extends through the alley itself, not merely at the cut.